

22STCV04087 22STCV04087

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Case Number: 22STCV04087 Hearing Date: July 9, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 9, 2026

Case Name: Caldwell v. Live Nation World

Wide, Inc., et al.

Case

No.: 22STCV04087

Matter: Motion for Summary Judgment or, in the Alternative,
Summary Adjudication

Moving

Party: Defendant Bobby Dee

Presents, Inc.

Responding Party: Plaintiff Caiden Caldwell, a minor, as
successor-in-interest to the Estate of Darrell Caldwell, professionally known
as Drakeo The Ruler, through his guardian ad litem, Tianna Purtue

Matter: Motion for Summary

Judgment or, in the Alternative, Summary Adjudication

Moving Party: Defendant Bobby Dee Presents, Inc.

Responding

Party: Plaintiffs Devante Caldwell,
Calvin Webb, Terrence Hackett, Kevin

Gomez, Jorky
Peralta, Felton Binns, Jerome Watkins, and Alrick Cooper,

III

Matter: Motion for Summary Judgment or, in the
Alternative, Summary Adjudication

Moving Party: Defendant
Bobby Dee Presents, Inc.

Responding Party: Plaintiff
Darrylene Corniel and Estate of Darrell Caldwell

Tentative Ruling: Defendant
Bobby Dee Presents, Inc.'s motion for summary judgment, or

in
the alternative summary adjudication against Plaintiff Caiden Caldwell,

a
minor, as successor-in-interest to the Estate of Darrell Caldwell,

professionally
known as Drakeo The Ruler, through his guardian ad litem

Tianna
Purtue is denied.

Defendant
Bobby Dee Presents, Inc.'s motion for summary judgment, or

in the
alternative summary adjudication against Plaintiffs Devante Caldwell, Calvin
Webb, Terrence Hackett, Kevin Gomez, Jorky Peralta, Felton Binns, Jerome Watkins,
and Alrick Cooper, III is denied.

Defendant

Bobby Dee Presents, Inc.'s motion for summary judgment, or

in

the alternative summary adjudication against Plaintiff Darrylene Corniel

and

Estate of Darrell Caldwell is denied.

Plaintiff Caiden Caldwell, a minor,

as successor-in-interest to the Estate of Darrell Caldwell, through his

guardian ad litem Tianna Purtue ("Caiden") filed this action against Defendants

Live Nation World Wide, Inc., C3 Presents, LLC, Bobby Dee Presents, Inc.

("Defendant"), Jeff Shuman, Enumer8, LLC, Brymo 123, Inc., Black Tide Events,

LLC, the University of Southern California ("USC"), LAFC StadiumCo, LLC, NPB Global

Consulting Groups, Inc., NPB Companies, Inc., CI Security Specialists, Inc.,

CISS Management Group, Hollywood Elite Security, Inc., Event Security

Consulting & Operations, Inc., and Does 1 through 100. The Second Amended

Complaint alleges three causes of action for: (1) wrongful death – negligence;

(2) wrongful death – premises liability; and (3) negligent

hiring/retention/supervision training – wrongful death. This action, related

cross-actions, and consolidated cases arise out of the December 18, 2021,

incident that occurred at the "Once Upon A Time in LA" music festival ("Music

Festival") held at the Banc of California Stadium in Los Angeles, California,

which resulted in the murder of the artist Darrell Caldwell, also known as

Drakeo the Ruler ("Subject Incident").

Plaintiffs Devante Caldwell, Calvin

Webb, Terrence Hackett, Kevin Gomez, Jorky Peralta, Felton Binns, Jerome

Watkins, and Alrick Cooper, III (collectively "Devante Plaintiffs") filed this

action against Defendants Live Nation World Wide, Inc., Bobby Dee Presents, Inc

("Defendant"), C3 Presents, LLC, Snoop Dogg's LLC, LAFC Sports LLC, and Contemporary Services

Corporation. The operative Complaint is the First Amended Complaint ("FAC").

The FAC alleges four causes of action for: (1) negligence; (2)

negligence—premises liability; (3) negligent infliction of emotional distress;

and (4) intentional infliction of emotional distress.

Plaintiff

Darrylene Corniel ("Corniel") and Estate of Darrell Caldwell ("Estate") (collectively

“Corniel Plaintiffs”) filed their action against Live Nation Worldwide Inc., C3 Presents LLC, Bobby Dee Presents, Inc (“Defendant”), Snoop Dogg’s LLC, Jeff Shuman, USC, LAFC Sports LLC, Major League Soccer, LLC, CISS Management Group, CI Security Specialists, Inc. and Does 1 to 100. The FAC alleges three causes of action on behalf of the Estate: (1) wrongful death sounding in negligence; (3) wrongful death – premises liability; and (5) wrongful death – negligent hiring, supervision, training, and/or retention. The FAC alleges three causes of action on behalf of Corniel for: (2) survival action sounding in negligence; (4) survival action – premises liability; and (6) survival action – negligent hiring, supervision, training, and/or retention.

On June 26, 2022, the Court consolidated all three cases under the lead case *Caldwell v. Live Nation World Wide, Inc., et al.*

Defendant moves for summary judgement, or alternatively, summary adjudication against Caiden. Caiden opposes.

Defendant moves for summary judgement, or alternatively, summary adjudication against Devante Plaintiffs. Devante Plaintiffs oppose.

Defendant moves for summary judgement, or alternatively, summary adjudication against Corniel Plaintiffs. Corniel Plaintiffs oppose.

Legal Standard

“The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.”²(*Aguilar v. Atlantic Richfield Co.*,²(2001) 25 Cal.4th 826, 850 (*Aguilar*).) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Ibid.*)³

²

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

Evidentiary Objections

A.

Defendant's Motion for Summary Judgment Against
Caiden

Caiden

makes four evidentiary objections to Robert Drislein's declaration. The Court rules in the following manner:

Sustained: 1 (Improper Opinion/Vague),
2 (Lack of Foundation/Improper

Opinion/Speculation), 3 (Lack of
Foundation/Improper Opinion)

Overruled: 4

Caiden

makes four evidentiary objections to Gia Romero's declaration. The Court rules in the following manner:

Overruled: 5,
6

Defendant

makes 10 evidentiary objections to James A. Bryant's Declaration. The Court rules in the following manner:

Sustained:

1 (Improper Opinion), 3 (Hearsay), 4 (Hearsay).

Overruled:

2, 5, 6, 7, 8, 9, 10

B.

Defendant's Motion for Summary Judgment Against Devante
Plaintiffs

Devante

Plaintiffs make the following evidentiary objections to Robert Drieslien's
declaration. The Court rules in the following manner:

Sustained: ¶

5 (Conclusory/Vague), ¶ 9 (Lack of Foundation), ¶ 10 (Lack of Foundation), ¶ 11 (Lack of Foundation), ¶ 12 (Lack of
Foundation), ¶ 13 (Lack of Foundation)

Overruled: ¶

4, ¶ 8

Devante

Plaintiffs make the following evidentiary objections to Gia Romero's
declaration. The Court rules in the following manner:

Overruled:

¶ 3, ¶ 4, ¶ 5

Devante

Plaintiffs also object to Exhibit D in Robert Begakis's Declaration. Exhibit D
is the previous ruling in this case, in which the Court granted Co-Defendant's
USC's Motion for Summary Judgment. The Court denies the evidentiary objection
because it is part of the Court's record, but the Court also notes that the
Court's previous ruling does not impact the ruling on Defendant's motion
against Devante Plaintiffs.

C.

Defendant's Motion for Summary Judgment Against Corniel Plaintiffs

Corniel

Plaintiffs make four evidentiary objections to Robert Drislein's declaration.
The Court rules in the following manner:

Sustained:

1 (Improper Opinion/Vague), 2 (Lack of Foundation/Improper Opinion/Speculation),
3 (Lack of Foundation/Improper Opinion)

Overruled:

4

Corniel

Plaintiffs make two evidentiary objections to Gia Romero's declaration. The Court rules in the following manner:

Overruled:

5, 6

Corniel

Plaintiffs also object to Exhibit D in Robert Begakis's Declaration. Exhibit D is the previous ruling in this case, in which the Court granted Co-Defendant's USC's Motion for Summary Judgment. The Court denies the evidentiary objection because it is part of the Court's record, but the Court also notes that the Court's previous ruling does not impact the ruling on Defendant's motion against Corniel Plaintiffs.

Defendant

makes eight evidentiary objections to Thomas Richard's Declaration.

Sustained:

1 (Improper Opinion), 3 (Hearsay), 4 (Hearsay).

Overruled:

2, 5, 6, 7, 8

Analysis

A.

Defendant's Motion for Summary Judgment Against
Caiden

Preliminary

Issues

As

an initial matter, there are three significant defects in Defendant's motion against Caiden. First, the notice of motion does not identify the issues that Defendant is basing its motion for summary adjudication on. Second, the separate statement does not identify all three causes of action in Caiden's operative pleading or the issues on which Defendant moves on its basis for summary adjudication.

A "fundamental principle of summary judgment law that was disregarded—that the procedural rules required by statute must be strictly applied." (California-American Water Co. v. Marina Coast Water Dist. (2022) 86 Cal.App.5th 1272, 1296.)

"It is elemental that a notice of motion must state in writing the 'grounds upon which it will be made.' [Citations.] Only the ground specified in the notice of motion may be considered by the trial court. [Citations.] This rule has been held to be especially true in the case of motions for summary adjudication of issues. [Citation.]" [Citation.] The Gonzales court continued, "The language in Code of Civil Procedure section 437c, subdivision (f) makes it clear that a motion for summary adjudication cannot be considered by the court unless the party bringing the motion duly gives notice that summary adjudication is being sought. [Citations.] 'If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion....' [Citation.] There is a sound reason for this rule: '... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied.' [Citation.]" (Jimenez v. Protective Life Ins. Co. (1992) 8 Cal.App.4th 528, 534 (citations omitted).) "If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." (Cal. Rules of Court, rule 3.1350(b).)

Defendant's notice of motion does not identify the issues on which it bases its motion for summary adjudication. The separate statement is also defective as it only identifies two headings labeled as "A. There are issues of Fact with Respect to

the Causes of Action for Negligence” and “B. There Are No Triable Issues of Fact with Respect to the Cause of Action for Premises Liability.” (Separate Statement, 2:6-7, 20:5-6.) Defendant’s notice of motion and separate statement are defective regarding its motion for summary adjudication. Thus, the Court will only address Defendant’s motion for summary judgment and not summary adjudication for failing to comply with the procedural requirements identified above.

Merits of Defendant’s Motion for Summary Judgment

Defendant

argues that it is entitled to summary judgment because there are no triable issues of fact with respect to the first, second, and third causes of action. The Court finds that Defendant’s moving papers and supporting evidence does not support such claim.

Defendant’s

notice of motion states that its motion against Caiden is as to his operative Complaint that was “filed on or about February 2, 2022.” (Notice of Motion, i:3-8; Defendant’s Separate Statement, 1:4-8.) Defendant also affirms its arguments within the memorandum of authorities referring to Caiden’s Complaint, and includes the Complaint in its moving papers. (Mot., 3:24-4:11, 6:25-27; Ex. C.) However, the operative Complaint in Caiden’s case is the Second Amended Complaint filed on August 19, 2024. (August 19, 2024, Caiden’s SAC.)

The

pleadings delimit the issues to be considered on a motion for summary judgment. [Citation.]” (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1253, as modified on denial of reh’g (July 7, 2008).) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, as modified on denial of reh’g (Feb. 22, 2013).)

Defendant

attempts to cure this defect in reply by arguing that the reply was made as to “each Cause of Action in the operative Second Amended Complaint (“SAC”) filed

by Plaintiff [Caiden] . . . on February 2, 2022.” (Reply, 1:4-7.) However, this does not cure the defect. Caiden's initial Complaint alleged three causes of action for: (1) negligence—wrongful death; (2) survival—wrongful death; and (3) premises liability—wrongful death. While the SAC alleges three causes of action for: (1) negligence—wrongful death; (2) wrongful death—premises liability; and (3) negligent hiring/retention/supervision training. It is unequivocally clear to the Court that Defendant made its motion for summary judgment against Caiden as to the Complaint and not the SAC, and has failed to address the allegations made in the SAC. Defendant does not address the third cause of action for negligent hiring/retention/supervision training. Because the Court is only considering the merits of Defendant's motion for summary judgment, Defendant has not met its burden to prevail on its motion because it did not address Caiden's third cause of action for negligent hiring/retention/supervision training.

Moreover,
as to the premises liability cause of action, the SAC does not make allegations against Defendant for owning the property or controlling the property where the Subject Incident occurred. The SAC alleges that Defendant was involved in organizing, promoting, selecting and coordinating artists, implementing safety measures, controlling access to restricted backstage areas, maintaining backstage, and providing reasonable security measures for invited artists and guests. (SAC, ¶¶ 78-81.) Defendant does not address these other issues in its moving papers.

Defendant
has not established that there is no triable issue of material fact as to all three causes of action in the SAC. Because Defendant failed to meet its burden, the burden does not shift to Caiden.

Therefore,
the Court denies Defendant's motion for summary judgment against Caiden. The Court also denies Defendant's motion for summary adjudication against Caiden.

B.
Defendant's Motion for Summary Judgment Against
Devante Plaintiffs

Preliminary Issues

As

an initial matter, there are two significant defects in Defendant's motion against Devante Plaintiffs. Similar to its motion against Caiden, in its motion against Devante Plaintiffs, the notice of motion and separate statement do not identify the issues that Defendant is addressing in its motion for summary adjudication.

The Court

reincorporates the legal doctrine it included in this ruling for Defendant's motion against Caiden. Defendant's motion against Devante Plaintiffs' is defective in the same way as its motion against Caiden. The notice of motion fails to identify the issues as the basis for the motion for summary adjudication. (See Notice of Motion.) As a result, Defendant's separate statement also lacks the issues listed for the Court to determine what material facts go to each issue for its motion for summary adjudication. Thus, the Court will only address Defendant's motion for summary judgment and not summary adjudication for failing to comply with the procedural requirements.

Merits

of Defendant's Motion for Summary Judgment

Defendant

contends that it is entitled to summary judgment because Plaintiff cannot present any evidence that: (1) Defendant owed a duty to Decedent to ensure his safety; (2) Defendant's acts or omissions were the proximate cause of Decedent's death; and (3) Defendant was responsible for selecting or supervising any security services that provided any security at the Music Festival. (Mot., 5:1-4.)

First Cause of Action –

Negligence

“To

succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries.” (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) “As a general rule, each person has a duty to exercise reasonable care to avoid causing injury to others. [Citation.] However, a person who has not created a peril generally has no duty to take affirmative action to protect against it,

and a person generally has no duty to protect another from the conduct of third parties.” (University of Southern California v. Superior Court (2018) 30 Cal.App.5th 429, 440.) “A defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112, 134 (Isaacs).) “Whether such a duty exists is a question of law to be determined on a case-by-case basis.” (Id. at p. 124.)

Thus, “[a] tenant ordinarily is not liable for injuries to his invitees occurring outside the leased premises on common passageways over which he has no control. [Citations.] Responsibility in such cases rests on the owner, who has the right of control and the duty to maintain that part of the premises in a safe condition. It is clear, however, that if the tenant exercises control over a common passageway outside the leased premises, he may become liable to his business invitees if he fails to warn them of a dangerous condition existing thereon.” [Citation.] The “crucial element is control.” (Moses v. Roger-McKeever (2023) 91 Cal.App.5th 172, 179 (citation omitted).)

Defendant

argues that it did not owe Decedent a duty because “it simply assisted Defendant C3 ultimately in booking various artists for the Music Festival.” (Mot., 6:2-4.) However, Defendant’s evidence does not support that conclusion.

“The party

moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Aguilar, supra, 25 Cal.4th at p. 850.)

“In order

to meet the test of sufficiency and thus place the proceeding in the posture where, in the absence of sufficient counter-affidavits, the trial court would be required to grant the motion for summary judgment, the affidavit or affidavits of the moving party must satisfy three requirements: (1) They must contain facts sufficient to entitle the moving party to a judgment, i.e., facts

establishing every element necessary to sustain a judgment in his favor; (2) such facts must be set forth with particularity, i.e., all the requisite evidentiary facts must be stated, and not the ultimate facts or conclusions of law; and (3) the affiant must show that if sworn as a witness he can testify competently to the evidentiary facts contained in his affidavit.”

(Kramer v. Barnes (1963) 212 Cal.App.2d 440, 446 (Kramer).) “The declarations are deficient in that they contain in part only conclusions.” (Colby v. Schwartz (1978) 78 Cal.App.3d 885, 888.)

Defendant’s

separate statement primarily relies on Drieslien’s declaration. Several paragraphs of Drieslien’s declaration are stricken for evidentiary objections, but the declaration is also defective. There is a lack of facts to establish that Defendant did not owe a duty to Decedent, and the role Defendant had in the events leading up to and at the Music Festival remains a triable issue of material fact. Drieslien’s declaration attests to more than his knowledge of the facts of the events; he repeatedly states his role, his involvement, and what other people employed by Defendant did not do. (See Drieslien’s Decl.) Romero’s declaration alone does not support Defendant’s argument that no triable issue of material fact exists regarding the material issue of whether Defendant did or did not owe Decedent a duty.

Moreover,

the holding in USC’s motion for summary judgment has no effect on Defendant’s motion for summary judgment. USC met its burden to prevail on summary judgment. Defendant must present evidence to support that it is also entitled to summary judgment; it cannot rely on another party’s outcome as evidence for the purpose of summary judgment.

Thus,

Defendant does not meet its initial burden to establish that no triable issue of material fact exists regarding Devante Plaintiff’s claims against it. Because Defendant did not meet its burden, the burden does not shift to Devante Plaintiffs. As addressed in this ruling, due to Defendant’s defective notice of motion and separate statement the Court is only addressing Defendant’s motion for summary judgment.

Therefore,

the Court denies Defendant’s motion for summary judgment. The Court also denies

Defendant's motion for summary adjudication.

C.

Defendant's Motion for Summary Judgment Against Corniel
Plaintiffs

Preliminary Issues

As

an initial matter, there are two significant defects in Defendant's motion against Corniel Plaintiffs. The notice of motion and separate statement do not identify the issues on which Defendant is basing its motion for summary adjudication.

The Court

reintegrates the legal doctrine it included in this ruling in response to Defendant's motion against Caiden. Defendant's motion against Corniel Plaintiffs is defective in the same way as its motion against Caiden and Devante Plaintiffs. The notice of motion fails to identify the issues as the basis for the motion for summary adjudication. (See Notice of Motion.) As a result, Defendant's Separate Statement also lacks the issues listed for the Court to determine what material facts go to each issue for its motion for summary adjudication. Thus, the Court will only address Defendant's motion for summary judgment and not its motion for summary adjudication for failing to comply with the procedural requirements.

Merits

of Motion for Summary Judgment

Defendant

contends that it is entitled to summary judgment because Plaintiff cannot present any evidence that: (1) Defendant owed a duty to Decedent to ensure his safety; (2) Defendant's acts or omissions were the proximate cause of Decedent's death; and (3) Defendant was responsible for selecting or supervising any security services that provided any security at the Music Festival. (Mot., 5:6-10.)

Defendant's

motion for summary judgment against Corniel is identical to the motions addressed in this ruling against Caiden and Devante Plaintiffs. Defendant's

separate statement in this motion also primarily relies on Drieslien's declaration. Several paragraphs from Drieslien's declaration are stricken by evidentiary objections, but the declaration is defective as addressed under the Devante Plaintiff's motion. There is a lack of facts to establish that Defendant did not owe a duty to Decedent, and what role Defendant had in the events leading up to the Music Festival and at the Music Festival. Drieslien's declaration attests to more than his knowledge of the facts of the events; he repeatedly states his role, his involvement, and what other people employed by Defendant did not do. (See Drieslien's Decl.; *Kramer v. Barnes* (1963) 212 Cal.App.2d 440, 446.) Romero's declaration alone does not support Defendant's argument that no triable issue of material fact exists that Defendant did not owe Decedent a duty. Defendant bears the burden of production to show that no triable issue of material fact exists. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Defendant has not met that initial burden.

Moreover,

as addressed throughout this ruling, the holding in USC's motion for summary judgment has no effect on Defendant's motion for summary judgment against Corniel Plaintiffs. Unlike Defendant, USC met its burden to prevail on summary judgment. Defendant must present evidence to support that it is also entitled to summary judgment; it cannot rely on another party's outcome as evidence for the purpose of summary judgment.

Thus,

Defendant does not meet its initial burden to establish that no triable issue of material fact exists. Because Defendant did not meet its burden, the burden does not shift to Corniel Plaintiffs. As addressed in this ruling, due to Defendant's defective notice of motion and separate statement, the Court is only addressing Defendant's motion for summary judgment.

Therefore,

the Court denies Defendant's motion for summary judgment. The Court also denies Defendant's motion for summary adjudication.

Conclusion

Defendant

Bobby Dee Presents, Inc.'s motion for summary judgment, or in the alternative, summary adjudication as to Plaintiff Caiden Caldwell, a minor, as

successor-in-interest to the Estate of Darrell Caldwell, professionally known as Drakeo The Ruler, through his guardian ad litem Tianna Purtue, is denied.

Defendant Bobby Dee

Presents, Inc.'s motion for summary judgment, or in the alternative, summary adjudication as to Plaintiffs Devante Caldwell, Calvin Webb, Terrence Hackett, Kevin Gomez, Jorky Peralta, Felton Binns, Jerome Watkins, and Alrick Cooper, III is denied.

Defendant Bobby Dee

Presents, Inc.'s motion for summary judgment, or in the alternative, summary adjudication as to Plaintiff Darrylene Corniel and Estate of Darrell Caldwell is denied.